

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to www.occourts.org/media-relations/civil.html and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 5/15/2026 10:00 AM

#	Case Name	Tentative
1	Marriott Hotel Services, LLC vs. RingCentral, Inc. 30-2024-01429620-CU-BC-CJC	Application to Appear as Counsel Pro Hac Vice The Application of Kristen McMullen to Appear as Counsel Pro Hac Vice for defendant RingCentral, Inc. is GRANTED. Applicant to give notice.
2	Estrada vs. Segade 30-2022-01292722-CU-PA-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Sasha Tymkowicz to be relieved as counsel of record for Plaintiff Monica Margarita Estrada is DENIED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.)

		Counsel has failed to demonstrate service. Neither the declaration nor proof of service filed in support of the Motion attests to the manner of service. Clerk to give notice.
3	Pellisier vs. Gertner 30-2025-01491927-CU-PN-CJC	Motion to Consolidate Cases Plaintiff's Motion to Consolidate is GRANTED. The following cases are consolidated for all purposes: (1) Case No. 2025-01491875, and (2) Case No. 2025-01491927. Plaintiff has withdrawn his request as to Case No. 2026-01537886. All future filings are to be submitted to the lower case number but are to reference both case numbers. Plaintiff to give notice.
4	Romero vs. Duong 30-2024-01448857-CU-PA-CJC	Motion for Leave to File Amended Answer Defendant Benito Lopez Diaz's unopposed Motion for Leave to File Amended Answer is GRANTED. Defendant is ORDERED to file the amended answer within 5 days. Defendant to give notice.
5	Marfone vs. Harvey & Company, LLC 30-2025-01529049-CU-BC-CJC	Motion to Compel Arbitration and Stay or Dismiss the Action Pending Arbitration The Motion to Compel Arbitration by defendants Harvey & Company, LLC; Harvey Equity Partners, LLC; HPI Partners, LLC; and David Harvey is GRANTED. The complaint filed by plaintiffs Vincent Marfone, Davis Matthews, and Luke Meyers alleges eleven causes of action arising from their claims that defendants Harvey & Company, LLC ("H&C"), Harvey Equity Partners, LLC ("HEP"), HPI Partners, LLC ("HPI"), and David Harvey breached the Harvey Equity Partners LLC, Amended and Restated Operating Agreement ("HEP Agreement") and the Limited Liability Company Agreement of HPI Partners LLC ("HPI Agreement"), and violated various sections of the Labor Code. Defendants' objections nos. 5, 11-14 are SUSTAINED. The remaining objections are OVERRULED.